

Court No. - 18

Case :- WRIT - C No. - 30578 of 2021

Petitioner :- Vineet Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Neeraj Tiwari,J.

Case was called out in revised. Learned counsel for both the parties are not present. Learned Standing Counsel is present.

In the larger interest of justice, put up this case as fresh on 2.12.2021.

Order Date :- 22.11.2021

Junaid

Court No. - 18

Case :- WRIT - C No. - 30578 of 2021

Petitioner :- Vineet Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Neeraj Tiwari, J.

Case was called out in revised list. Learned counsels for both sides are not present. Learned Standing Counsel is present.

On the last occasion i.e. 22.11.2021 position was the same and the case was posted for 02.12.2021 as fresh case.

As a last opportunity, put up this case as fresh on 09.12.2021.

Order Date :- 2.12.2021

Rmk.

Court No. - 18

Case :- WRIT - C No. - 30578 of 2021

Petitioner :- Vineet Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Neeraj Tiwari,J.

Mr. R.B. Maurya, Advocate informed that due to marriage in family of Mr. Sunil Kumar Srivastava, learned counsel for the petitioner, he could not come to the Court today and further submitted that case may be passed over for the day.

Accordingly, put up this case as fresh on 16.12.2021.

Order Date :- 9.12.2021

Junaid

Court No. - 18

Case :- WRIT - C No. - 30578 of 2021

Petitioner :- Vineet Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Neeraj Tiwari,J.

Heard learned counsel for the petitioner, learned standing counsel for respondent no. 1 and Sri Ashutosh Trivedi holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondent no.3.

Learned counsel for the petitioner prays for and is granted three days time to file amendment application.

Put up this case as fresh on 21.12.2021.

Order Date :- 16.12.2021

Arvind

Court No. - 18

Case :- WRIT - C No. - 30578 of 2021

Petitioner :- Vineet Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Neeraj Tiwari,J.

Learned counsel for the petitioner prays for and is granted one week time to file amendment application.

Put up this case as fresh on 12.1.2022.

Order Date :- 5.1.2022

Junaid

Court No. - 72

Case :- WRIT - C No. - 30578 of 2021

Petitioner :- Vineet Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Neeraj Tiwari,J.

Considering the wide spread of Novel Corona Virus (Covid-19) specially Omicron variant, meeting of Administrative Committee of Hon'ble High Court was held on 09.01.2022. In meeting, it has been decided to hear the cases only through virtual mode.

Case was called out. It appears that due to lack of information or poor internet connectivity, learned counsel for the petitioner could not be connected. Mr. Baleshwar Chaturvedi, learned counsel for the respondent no. 3 as well as learned standing counsel was connected through video conferencing.

In the larger interest of justice, put up this case as fresh on 19.1.2022.

Order Date :- 12.1.2022

Junaid

Court No. - 72

Case :- WRIT - C No. - 30578 of 2021

Petitioner :- Vineet Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Neeraj Tiwari, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent no. 1 and Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 and 3 through video conferencing.

At the very outset, learned counsel for the respondents submitted that Clause 6.5 of U.P. Electricity Supply Code, 2005 (hereinafter referred to as the Code, 2005) provides for settlement of dispute of electricity bills and further Clause 6.14 of the Code, 2005 provides for payment of electricity bills in installments, therefore, petitioner may approach the Executive Engineer-respondent no. 2 for his grievance. In case petitioner approaches the respondent no. 2 by filling an application, he would consider and take decision upon that at the earliest.

At this stage, learned counsel for the petitioner submitted that he is not pressing first prayer of the writ petition. He next submitted that petitioner may be given liberty to approach the respondent no. 2 alongwith an application and a suitable direction may be issued to respondent no. 2 to consider and take decision upon that at the earliest.

Under such facts and circumstances of the case, this petition is **disposed of** with liberty to petitioner to approach the Executive Engineer-respondent no. 2 and move application for settlement of electricity bill under Clause 6.5 and 6.14 of U.P. Electricity Supply Code, 2005 within two weeks from today. In case any such application is filed, respondent no. 2 shall consider and decide the same in accordance with law within a period of four weeks from the date of production of certified copy of this order.

Order Date :- 19.1.2022

Rmk.